THE POST-GRADUATE INSTITUTE OF MEDICAL EDUCATION AND RESEARCH, CHANDIGARH ACT, 1966

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IndiaCode

THE POST-GRADUATE INSTITUTE OF MEDICAL EDUCATION AND RESEARCH, CHANDIGARH, ACT, 1966

ACT NO. 51 OF 1966

[17*th December*, 1966.]

An Act to declare the institution known as the Post-Graduate Institute of Medical Education and Research, Chandigarh, to be an institution of national importance and to provide for its incorporation and matters connected therewith.

BE it enacted by Parliament in the Seventeenth Year of the Republic of India as follows:—

1. Short title and commencement.—(*1*) This Act may be called the Post-Graduate Institute of Medical Education and Research, Chandigarh, Act 1966.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

2. Declaration of Post-Graduate Institute of Medical Education and Research, Chandigarh, as an institution of national importance.—Whereas the objects of the institution known as the Post-Graduate Institute of Medical Education and Research, Chandigarh in the Union territory of Chandigarh are such as lo make the institution one of national importance, it is hereby declared that the institution known as the Post-Graduate Institute of Medical Education and Research, Chandigarh is an institution of national importance.

3. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "Fund" means the Fund of the Institute referred to in section 16;

(*b*) "Governing Body" means the Governing Body of the Institute;

(*c*) "Institute" means the institution known as the Post-Graduate Institute of Medical Education and Research, Chandigarh, incorporated under this Act;

(*d*) "member" means a member of the Institute;

(*e*) "regulation" means a regulation made by the Institute;

(*f*) "rule" means a rule made by the Central Government.

4. Incorporation of Institute.—The Post-Graduate Institute of Medical Education and Research, Chandigarh, is hereby constituted a body corporate by the name aforesaid and as such body corporate, it shall have perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property and to contract and shall, by that name, sue and be sued.

5. Composition of Institute.—The Institute shall consist of the following members, namely:—

(*a*) the Vice-Chancellor of the Punjab University, *ex officio*;

(*b*) the Director-General of Health Services, Government of India, *ex officio*;

(*c*) the Director of the Institute, *ex officio;*

(*d*) three representatives of the Central Government to be nominated by that Government, one each from the Ministry of Finance, Ministry of Education and Ministry of Health and Family Planning;

(*e*) seven persons of whom one shall be a non-medical scientist representing the Indian Science Congress Association, to be nominated by the Central Government;

1. 1st April, 1967, *vide* notification No. S.O. 1115(E), dated 29th March, 1967, *see* Gazette of India, Extraordinary, Part II, sec. 3(*ii*).

(*f*) four representatives of the medical faculties of Indian Universities to be nominated by the Central Government in the Manner prescribed by rules; and

(*g*) three members of Parliament of whom two shall be elected from among themselves by the members of the House of the People (Lok Sabha) and one from among themselves by the members of the Council of Slates (Rajya Sabha).

6. Term of office of, and vacancies among, members.—(*1*) Save as otherwise provided in this section, the term of office of a member shall be five years from the date of his nomination or election.

(*2*) The term of office of a member elected under clause (*g*) of section 5 shall come to an end as soon as he [1][becomes a Minister or Minister of State or Deputy Minister, or the Speaker or the Deputy Speaker of the House of the People, or the Deputy Chairman of the Council of States, or] ceases to be a member of the House from which he was elected.

(*3*) The term of office of an *ex officio* member shall continue so long as he holds the office by virtue of which he is such a member.

(*4*) The term of office of a member nominated or elected to fill a casual vacancy shall continue for the remainder of the term of the member in whose place he is nominated or elected.

(*5*) An out-going member other than a member elected under clause (*g*) of section 5 shall unless the Central Government otherwise directs, continue in office until another person is nominated as a member in his place.

(*6*) An out-going member shall be eligible for re-nomination or re-election.

(*7*) A member may resign his office by writing under his hand addressed to the Central Government but he shall continue in office until his resignation is accepted by that Government.

(*8*) The manner of filling vacancies among members shall be such as may be prescribed by rules.

7. President of Institute.—(*1*) There shall be a President of the Institute who shall be nominated by the Central Government from among the members other than the Director of the Institute.

(*2*) The President shall exercise such powers and discharge such functions as are laid down in this Act or as may be prescribed by rules or regulations.

8. Allowances of President and members.—The President and other members shall receive such allowances, if any, from the Institute as may be prescribed by rules.

9. Meetings of Institute.—The Institute shall hold its first meeting at such time and place as may be appointed by the Central Government and shall observe such rules of procedure in regard to the transaction of business at the first meeting as may be laid down by that Government; and thereafter the Institute shall meet at such times and places and observe such rules of procedure in regard to the transaction of business at its meetings as may be prescribed by regulations.

10. Governing Body and other committees of Institute.—(*1*) There shall be a Governing Body of the Institute which shall be constituted by the Institute in such manner as may be prescribed by regulations:

Provided that the number of persons who are not members of the Institute shall not exceed one-third of the total membership of the Governing Body.

(*2*) The Governing Body shall be the executive committee of the Institute and shall exercise such powers and discharge such functions as the Institute may, by regulations made in this behalf, confer or impose upon it.

(*3*) The President of the Institute shall be the Chairman of the Governing Body and as Chairman thereof shall exercise such powers and discharge such functions as may be prescribed by regulations.

1. Ins. by Act 18 of 2001, s. 2 (w.e.f. 3-8-2001).

(*4*) The procedure to be followed in the exercise of its powers and discharge of its functions by the Governing Body, and the term of office of, and the manner of filling vacancies among, the members of the Governing Body shall be such as may be prescribed by regulations.

(*5*) Subject to such control and restrictions as may be prescribed by rules, the Institute may constitute as many standing committees and as many *ad hoc* committees as it thinks fit for exercising any power or discharging any function of the Institute or for inquiring into, or reporting or advising upon, any matter which the Institute may refer to them.

(*6*) The Chairman and members of the Governing Body and the Chairman and members of a standing committee or an *ad hoc* committee shall receive such allowances, if any, as may be prescribed by regulations.

11. Staff of Institute.—(*1*) There shall be a chief executive officer of the Institute who shall be designated as the Director of the Institute and shall, subject to such rules as may be made by the Central Government in this behalf, be appointed by the institute:

Provided that the first Director of the Institute shall be appointed by the Central Government.

[1][(*1A*) The Director shall hold office for a term of five years from the date on which he enters upon his office or until he attains the age of sixty-five years, whichever is earlier:

Provided that any person holding office as a Director immediately before the commencement of the All-India Institute of Medical Sciences and the Past-Graduate Institute of Medical Education and Research (Amendment) Act, 2007 (42 of 2007), shall in so far as his appointment is inconsistent with the provisions of this sub-section, cease to hold office on such commencement as such Director and shall be entitled to claim compensation not exceeding three months' pay and allowances for the premature termination of his office or of any contract of service.]

(*2*) The Director shall act as the Secretary to the Institute as well as the Governing Body.

(*3*) The Director shall exercise such powers and discharge such functions as may be prescribed by regulations or as may be delegated to him by the Institute or the President of the Institute or by the Governing Body or the Chairman of the Governing Body.

(*4*) Subject to such rules as may be made by the Central Government in this behalf, the Institute may appoint such number of other officers and employees as may be necessary for the exercise of its powers and discharge of its functions and may determine the designations and grades of such other officers and employees.

(*5*) Subject to such rules as may be made by the Central Government in this behalf, the Director and other officers and employees of the Institute shall be entitled to such salary and allowances and shall be governed by such conditions of service in respect of leave, pension, provident fund and other matters as may be prescribed by regulations made in this behalf.

12. Objects of Institute.—The objects of the Institute shall be—

(*a*) to develop patterns of teaching in undergraduate and post-graduate medical education in all its branches so as to demonstrate a high standard of medical education.

(*b*) to bring together, as far as may be, in one place educational facilities of the highest order for the training of personnel in all important branches of health activity; and

(*c*) to attain self-sufficiency in post-graduate medical education to meet the country's needs for specialists and medical teachers.

13. Functions of Institute.—With a view to the promotion of the objects specified in section 12, the Institute may—

(*a*) provide for undergraduate and post-graduate teaching in the science of modern medicine and other allied sciences, including physical and biological sciences;

1. Ins. by Act 42 of 2007, s. 3 (w.e.f. 30-9-2007).

(*b*) provide facilities for research in the various branches of such sciences;

(*c*) provide for the teaching of humanities;

(*d*) conduct experiments in new methods of medical education, both undergraduate and post-graduate, in order to arrive at satisfactory standards of such education;

(*e*) prescribe courses and curricula for both under-graduate and post-graduate studies;

(*f*) notwithstanding anything contained in any other law for the time being in force, establish and maintain—

(*i*) one or more medical colleges with different departments, including a department of preventive and social medicine, sufficiently staffed and equipped to undertake not only under-graduate medical education but also post-graduate medical education in different subjects,

(*ii*) one or more well-equipped hospitals,

(*iii*) a dental college with such institutional facilities for the practice of dentistry and for the practical training of students as may be necessary,

(*iv*) a nursing college sufficiently staffed and equipped for the training of nurses,

(*v*) rural and urban health organisations which will form centres for the field training of the medical, dental and nursing students of the Institute as well as for research into community health problems, and

(*vi*) other institutions for the training of different types of health workers, such as physiotherapists, occupational therapists, pharmacists, drug analysts and medical technicians of various kinds;

(*g*) train teachers for the different medical colleges in India;

(*h*) hold examinations and grant such degrees, diplomas and other academic distinctions and titles in undergraduate and post-graduate medical education as may be laid down in the regulations;

(*i*) institute, and appoint persons to, professorships, readerships, lecturerships and posts of any description in accordance with regulations;

(*j*) receive grants from the Government and gifts, donations, benefactions, bequests and transfers of properties, both movable and immovable, from donors, benefactors, testators or transferors, as the case may be;

(*k*) deal with any property belonging to, or vested in, the Institute in any manner which is considered necessary for promoting the objects specified in section 12;

(*l*) demand and receive such fees and other charges as may be prescribed by regulations;

[1][(*m*) construct quarters for its staff and allot such quarters to the staff in accordance with such regulations as may be made in this behalf;

(*n*) borrow money, with the prior approval of the Central Government, on the security of the property of the Institute;]

[2][(*o*)] do all such other acts and things as may be necessary to further the objects specified in section 12.

14. Vesting of property.—The properties of the Institute which had, by virtue of the Punjab Reorganisation Act, 1966 (31 of 1966), vested in the Central Government shall, on the commencement of this Act, vest in the Institute.

15. Payment to Institute.—The Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the Institute in each financial year such sums of money and in

1. Ins. by Act 30 of 1987, s. 3 (w.e.f. 8-9-1987).
2. Clause (*m*) re-lettered as clause (*o*) thereof by s. 3, *ibid*. (w.e.f. 8-9-1987).

such manner as may be considered necessary by that Government for the exercise of its powers and discharge of its functions under this Act.

16. Fund of Institute.—(*1*) The Institute shall maintain a Fund to which shall he credited—

(*a*) all moneys provided by the Central Government;

(*b*) all fees and other charges received by the Institute;

(*c*) all moneys received by the Institute by way of grants, gifts, donations, benefactions, bequests or transfers; and

(*d*) all moneys received by the Institute in any other manner or from any other source.

(*2*) All moneys credited to the Fund shall be deposited in such banks or invested in such manner as the Institute may, with the approval of the Central Government, decide.

(*3*) The Fund shall be applied towards meeting the expenses of the Institute including expenses incurred in the exercise of its powers and discharge of its functions under section 13.

17. Budget of Institute.—The Institute shall prepare in such form and at such time every year as may be prescribed by rules a budget in respect of the financial year next ensuing showing the estimated receipts and expenditure of the Institute and shall forward to the Central Government such number of copies thereof as may he prescribed by rules.

18. Accounts and audit.—(*1*) The Institute shall maintain proper accounts and other relevant records and prepare an annual statement of accounts including the balance-sheet in such form as the Central Government may by rules prescribe, and in accordance with such general directions as may be issued by that Government, in consultation with the Comptroller and Auditor-General of India.

(*2*) The accounts of the Institute shall be audited by the Comptroller and Auditor-General of India and any expenditure incurred by him in connection with such audit shall be payable by the Institute to the Comptroller and Auditor-General of India.

(*3*) The Comptroller and Auditor-General of India and any person appointed by him in connection with the audit of the accounts of the Institute shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India has in connection with the audit of the Government accounts and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect the offices of the Institute as well as of the institutions established and maintained by it.

(*4*) The accounts of the Institute as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government and that Government shall cause the same to be laid before both Houses of Parliament.

19. Annual report.—The Institute shall prepare for every year a report of its activities during that year and submit the report to the Central Government in such form and on or before such date as may be prescribed by rules and a copy of this report shall be laid before both Houses of Parliament within one month of its receipt.

20. Pension and provident funds.—(*1*) The Institute shall constitute for the benefit of its officers, teachers and other employees in such manner and subject to such conditions as may be prescribed by regulations, such pension and provident funds as it may deem fit.

(*2*) Where any such pension or provident fund has been constituted, the Central Government may declare that the provisions of the Provident Funds Act, 1925 (19 of 1925), shall apply to such fund as if it were a Government Provident Fund.

21. Authentication of orders and instruments of Institute.—All orders and decisions of the Institute shall be authenticated by the signature of the President or any other member authorised by the Institute in this behalf and all other instruments shall be authenticated by the signature of the Director or any other officer of the Institute authorised in like manner in this behalf.

22. Acts and proceedings not to be invalidated by vacancies, etc.—No act done or proceeding taken by the Institute, Governing Body or any standing or *ad hoc* committee under this Act shall be questioned on the ground merely of the existence of any vacancy in or defect in the constitution of the Institute, Governing Body or such standing or *ad hoc* committee.

[1][**23. Grant of medical degrees, diplomas, etc., by Institute.—**Notwithstanding anything contained in any other law for the time being in force, the Institute shall have power to grant medical degrees, diplomas and other academic distinctions and titles under this Act.]

[2][**24. Recognition of medical qualifications granted by Institute.—**Notwithstanding anything contained in the Indian Medical Council Act, 1956 (102 of 1956), the medical degrees and diplomas granted by the Institute under this Act shall be recognised medical qualifications for the purposes of that Act and shall be deemed to be included in the First Schedule to that Act.]

25. Control by Central Government.—The Institute shall carry out such directions as may be issued to it from time to time by the Central Government for the efficient administration of this Act.

26. Disputes between Institute and Central Government.—If in, or in connection with, the exercise of its powers and discharge of its functions by the institute under this Act, any dispute arises between the Institute and the Central Government, the decision of the Central Government on such dispute shall be final.

27. Returns and information.—The Institute shall furnish to the Central Government such reports, returns and other information as that Government may require from time to time.

28. Transfer of service of existing employees.—Subject to the provisions of this Act, every person who is employed in the Post-Graduate Institute of Medical Education and Research, Chandigarh immediately before the commencement of this Act, shall, on and from such commencement, become an employee of the Institute and shall hold his office or service therein by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund and other matters as he would have held the same on the date of commencement of this Act if this Act had not been passed, and shall continue to do so unless and until his employment is terminated or until such tenure, remuneration and terms and conditions are duly altered by regulations:

Provided that the tenure, remuneration and terms and conditions of service of any such person shall not be altered to his disadvantage without the previous approval of the Central Government.

29. Continuance of facilities at Institute.—The Institute shall continue to provide facilities to the Governments of the States of Haryana and Punjab and the Central Government in relation to the Union territories of Chandigarh and Himachal Pradesh and the people of the States and territories aforesaid and such facilities shall not, in any respect, be less favourable to such Governments and people than what were being provided to them before the 1st day of November, 1966 and shall be made available for such period and upon such terms and conditions (including those relating to any contributions to be made for

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1. Section 23 shall stand substituted (date to be notified) by Act 3 of 2009, s. 2 to read as under:
"**23. Grant of medical, dental or nursing degrees, diplomas, etc., by the institute.**—Notwithstanding anything contained in any other law for the time being in force, the Institute shall have power to grant medical, dental or nursing degrees, diplomas and other academic distinctions and titles under this Act.".

2. Section 24 shall stand substituted (date to be notified) by s. 3, *ibid*., to read us under:

"24. Recognition of medical, dental and nursing qualifications granted by the Institute.— Notwithstanding anything contained in the Indian Medical Council Act, 1956 (102 of 1956), the Dentists Act, 1948 (16 of 1948) and the Indian Nursing Council Act, 1947 (48 of 1947), the medical dental or nursing degrees or diplomas, as the case may be, granted by the Institute under this Act shall be recognised—

(*a*) medical qualifications for the purpose of the Indian Medical Council Act, 1956 and shall be deemed to be included in the First Schedule to that Act;

(*b*) dental qualifications for the purpose of the Dentists Act, 1948 and shall be deemed to be included in the Schedule to that Act; and

(*c*) nursing qualifications for the purpose of the Indian Nursing Council Act, 1947 and shall be deemed to be included in the Schedule to that Act.".

the provision of such facilities) as may be agreed upon between the Institute, Governments of the States of Haryana and Punjab and the Central Government before the1st day of April, 1967, or if no agreement is reached by the said date, as may be fixed by order of the Central Government.

30. Power to remove difficulties.—If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, within a period of three years from the commencement of this Act, by order published in the Official Gazelle, make such provision or give such directions not inconsistent with the provisions of this Act, as appears to it to be necessary or expedient for removing the difficulty.

31. Power to make rules.—(*1*) The Central Government, after consultation with the Institute, may, by notification in the Official Gazette, make rules to carry out the purposes of this Act:

Provided that consultation with the Institute shall not be necessary on the first occasion of the making of rules under this section, but the Central Government shall take into consideration any suggestions which the Institute may make in relation to the amendment of such rules after they are made.

(*2*) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(*a*) the manner of nomination of members under clause (*f*) of section 5;

(*b*) the control and restrictions in relation to the constitution of standing and *ad hoc* committees under sub-section (*5*) of section 10;

(*c*) the conditions of service of, the procedure to be followed by, and the manner of filling vacancies among, members of the Institute;

(*d*) the powers and functions to be exercised and discharged by the President of the Institute;

(*e*) the allowances, if any, to be paid to the President and other members of the Institute;

(*f*) the number of officers and employees that may be appointed by the Institute and the manner of such appointment;

(*g*) the form in which, and the time at which, the budgets and reports shall be prepared by the Institute and the number of copies thereof to be forwarded to the Central Government;

(*h*) the form and manner in which returns and information are to be furnished by the Institute to the Central Government;

(*i*) any other matter which has to be or may be prescribed by rules.

(*3*) Every rule made under this section, shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or [1][in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid] both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

32. Power to make regulation.—(*1*) The Institute [2][, with the previous approval of the Central Government, may, by notification in the Official Gazette], make regulations consistent with this Act and the rules made thereunder to carry out the purposes of this Act, and without prejudice to the generality of this power, such regulations may provide for—

(*a*) the summoning and holding of meetings, other than the first meeting of the Institute, the time and place where such meetings are to be held, the conduct of business at such meetings and the number of members necessary to form a quorum;

1. Subs. by Act 4 of 1986, s. 2 and the Schedule, for "in two successive sessions and if, before the expiry of the session immediately following" (w.e.f. 15-5-1986).
2. Subs. by s. 2 and the Schedule, *ibid*., for " may, with the previous approval of the Central Government" (w.e.f. 15-5-1986).

(*b*) the manner of constituting the Governing Body and standing and *ad hoc* committees, the term of office of, and the manner of filling vacancies among, the members of, the Governing Body and standing and *ad hoc* committees;

(*c*) the powers and functions to be exercised and discharged by the President of the Institute and the Chairman of the Governing Body;

(*d*) the allowances, if any, to be paid to the Chairman and the members of the Governing Body and of standing and *ad hoc* committees;

(*e*) the procedure to be followed by the Governing Body and standing and *ad hoc* committees in the conduct of their business, exercise of their powers and discharge of their functions;

(*f*) the tenure of office, salaries and allowances and other conditions of service of the Director and other officers and employees of the Institute including teachers appointed by the Institute;

(*g*) the powers and duties of the Chairman of the Governing Body;

(*h*) the powers and duties of the Director and other officers and employees of the Institute;

(*i*) the management of the properties of the Institute;

(*j*) the degrees, diplomas and other academic distinctions and titles which may be granted by the Institute;

(*k*) the professorships, readerships, lecturerships and other posts which may be instituted and persons who may be appointed to such professorships, readerships, lecturerships and other posts;

(*l*) the fees and other charges which may be demanded and received by the Institute;

(*m*) the manner in which, and the conditions subject to which, pension and provident funds may be constituted for the benefit of officers, teachers and other employees of the Institute;

(*n*) any other matter for which under this Act provisions may be made by regulations.

(*2*) Notwithstanding anything contained in sub-section (*1*), the first regulations under this Act shall be made by the Central Government; and any regulations so made may be altered or rescinded by the Institute in exercise of its powers under sub-section (*1*).

[1][(*3*) Every regulation made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the regulation or both Houses agree that the regulation should not be made, the regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that regulation.]

1. Ins. by Act 4 of 1986, s. 2 and the Schedule (w.e.f. 15-5-1986).